

Amendment No. 1 to HB2026

Farmer
Signature of Sponsor

AMEND Senate Bill No. 1814*

House Bill No. 2026

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 39, Chapter 17, Part 1, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Geodetic control monument" means a land surveying monument established by licensed professional land surveyors and governmental agencies. A geodetic control monument may be in the form of, but is not limited to, a metal pin, aluminum disk, brass disk, or other permanent or semi-permanent object, set in soil, concrete, or rock, and must be marked as a control point or with "do not disturb" or other language to identify the monument's purpose;

(2) "Historic land surveying monument" means a land surveying monument established by federal, state, or local governments establishing a state boundary line, county boundary line, or city boundary line; and

(3) "Property corner monument" means a land surveying monument established by a licensed professional land surveyor to identify property corners or property lines, the location and description of which are described in a recorded document in the register of deeds office of any county in this state. A property corner monument may be any permanent or semi-permanent object, including, but not limited to:

(A) Iron or steel pipes, rebar, spikes, nails, or rods;

(B) Concrete markers, including highway right-of-way markers;

(C) Stone or rock, whether natural or set;

(D) Trees, stumps, or temporary wooden stakes;

(E) Markings or scribes made on trees, concrete, or metal; and

(F) Such other monuments as may be described in deeds, on plats, and
in other instruments of record.

(b)

(1) It is an offense for a person to intentionally move without replacing, alter, destroy, or remove a monument the person knows, or reasonably should know, is a property corner monument, historic land surveying monument, or geodetic control monument.

(2) As used in subdivision (b)(1), "person" does not include an employee or contractor of the department of transportation when engaged in the discharge of the employee's or contractor's official duties on behalf of the department.

(3) A violation of subdivision (b)(1) is a Class A misdemeanor.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.